

IN THE SUPREME COURT OF PAKISTAN
(Review Jurisdiction)

PRESENT:

MR. JUSTICE IFTIKHAR MUHAMMAD CHAUDHRY, HCJ
MR. JUSTICE JAVED IQBAL
MR. JUSTICE MIAN SHAKIRULLAH JAN
MR. JUSTICE TASSADUQ HUSSAIN JILLANI
MR. JUSTICE NASIR-UL-MULK
MR. JUSTICE RAJA FAYYAZ AHMED
MR. JUSTICE MUHAMMAD SAIR ALI
MR. JUSTICE MAHMOOD AKHTAR SHAHID SIDDIQUI
MR. JUSTICE JAWWAD S. KHAWAJA
MR. JUSTICE ANWAR ZAHEER JAMALI
MR. JUSTICE KHILJI ARIF HUSSAIN
MR. JUSTICE TARIQ PARVEZ
MR. JUSTICE MIAN SAQIB NISAR
MR. JUSTICE ASIF SAEED KHAN KHOSA
Mr. JUSTICE SARMAJAL JALAL OSMANY
MR. JUSTICE AMIR HANI MUSLIM
MR. JUSTICE GHULAM RABBANI

CIVIL REVIEW PETITION NO. 129/2010 IN CONST. P. NO. 76/2007

The Federation of Pakistan through Secy. M/o Law, Justice and
Parliamentary Affairs, Islamabad v. Dr. Mubashir Hassan, etc

C.M.A.100 & 101/2010 in
C.R.P.Nil/2010 in Const.P.76/2007

Malik Muhammad Qayyum v. The Federation of Pakistan, etc

C.M.A.246 & 247/2010 in
C.R.P.Nil/2010 in Const.P.76/2007

Abdul Baseer Qureshi v. Mubashir Hussain, etc

C.M.A.248 & 249/2010 in
C.R.P.Nil/2009 in Const.P.76/2007

Naveed Ahsan v. Dr. Mubashir Hassan, etc

C.M. Appeal 14/2010 in
C.M.A.Nil/2010 in Const.P.76/2007

Malik Muhammad Qayyum v. Federation of Pakistan

C.M. Appeal 77/2010 in
C.M.A.Nil/2010 in Const.P.76/2007

Dr. Danishwar Malik v. The Federation of Pakistan & others

For the petitioner: (CRP 129/2010)	Mr. Kamal Azfar, Sr. ASC Raja Abdul Ghafoor, AOR
Voluntarily appeared on behalf of Federation:	Mr. K.K. Agha, Addl. AGP
For the applicant/appellant: (CMA 100 & 101 & CM Appeal 14/2010)	Mr. Wasim Sajjad, Sr. ASC Mr. Arshad Ali Chaudhry, AOR
Applicant in person: (CMA 246 & 247/2010)	Mr. Abdul Baseer Qureshi, ASC Ch. Akhtar Ali, AOR (absent)
For the applicant: (CMA 248 & 249/2010)	Mr. Abdul Baseer Qureshi, ASC Ch. Akhtar Ali, AOR (absent) Mr. Naveed Ahsan, former Chairman, NAB
For the appellant: (CM Appeal 77/2010)	Dr. Khalid Ranjha, Sr. ASC Mr. Faiz-ur-Rehman, AOR Dr. Danishwar Malik, former PG, NAB
On Court notice:	Maulvi Anwarul Haq Attorney General for Pakistan
For the respondent No. 1: (CRP 129/2010)	Mr. Abdul Hafeez Pirzada, Sr. ASC Mr. Mehr Khan Malkik, AOR
Date of hearing:	12.04.2011
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ORDER

IFTIKHAR MUHAMMAD CHAUDHRY, CJ. – Barrister

Kamal Azfar, Sr. ASC has appeared and stated that he has not been instructed by the Federation to argue this case. According to him, he has failed to understand as to why the Federation is not willing to proceed with the case. As far as legal position on the subject is concerned, it has already been explained in the yesterday's order. However, in addition to that, it may be observed that the provision of Order XXVI rule 26 of the Supreme Court Rules, 1980 in substance is the same as it was in the Supreme Court Rules, 1956 under Order XXVI rule 5. It is to be noted that the Supreme Court Rules are framed under the

provisions of the Constitution and any departure from the same will not serve the ends of justice, as held by this Court time and again, reference to which has already been made in the yesterday's order.

2. Mr. K.K. Agha, learned Additional Attorney General for Pakistan earlier appeared today and stated that the Federation intended to file an application challenging *vires* of rule 6 of Order XXVI, but no such application was placed on record. However, during course of discussion, following in substance the rule 6 of Order XXVI, Mr. K.K. Agha was pointed out that he himself had assisted Barrister Kamal Azfar in the hearing of the petitions, therefore, he would argue the case by adopting the certificate, which was earlier filed by Mr. Masood Ahmed Chishti, ASC (now Secretary, Ministry of Law & Justice) as was adopted by Barrister Kamal Azfar, although originally no such certificate was filed by the latter. At this, he sought time to have instructions from the Federation, which was granted, but on his return he stated that he was not given any specific instructions, therefore, he needed some more time. Mr. Abdul Hafeez Pirzada, learned Sr. ASC for the caveator pointed out that no deviation was possible from the provision of rule 6 of Order XXVI as this Court had, in a large number of cases, declined to grant such permission, and according to him there was wisdom in it because in such an eventuality there would be no end to litigation and the learned counsel who had argued the case and signed the certificate would be substituted by adopting the practice as the Federation

might intend to adopt in this case; therefore, he would oppose it if such permission was accorded, as according to him, it was settled position of the law prevailing for the last many decades and no deviation was called for. We are fully conscious of the constitutional provisions as well as the rule referred to hereinabove. However, to provide another opportunity to Mr. K.K. Agha to seek instructions in this behalf, we adjourn the case to 14.04.2011.

IFTIKHAR MUHAMMAD CHAUDHRY, CJ.

JAVED IQBAL, J.

MIAN SHAKIRULLAH JAN, J.

TASSADUQ HUSSAIN JILLANI, J.

NASIR-UL-MULK, J.

RAJA FAYYAZ AHMED, J.

MUHAMMAD SAIR ALI, J.

MAHMOOD AKHTAR SHAHID SIDDIQUI, J.

JAWWAD S. KHAWAJA, J.

ANWAR ZAHEER JAMALI, J.

KHILJI ARIF HUSSAIN, J.

TARIQ PARVEZ, J.

MIAN SAQIB NISAR, J.

ASIF SAEED KHAN KHOSA, J.

SARMAD JALAL OSMANY, J.

AMIR HANI MUSLIM, J.

GHULAM RABBANI, J.

Islamabad,

April 12, 2011

APPROVED FOR REPORTING